

1.

CASE #	CASE NAME	HEARING NAME
CVRI2301887	RAMIREZ vs WITHEROW	MOTION FOR SANCTIONS

Tentative Ruling:

Plaintiffs Robin Ramirez and Marie Webster's Motion for Sanctions is denied.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs ask the Court to take judicial notice of (1) their Additional Evidence in Support of Default Prove Up, filed 9/3/24, and (2) the file in the Probate matter. The court grants the request for judicial notice of the documents as to their existence, but not the truth of the matter, pursuant to Evid. Code § 452(d). (*Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.)

Safe Harbor

The sanctions process is usually commenced by party motion, although a court may issue an order to show cause *sua sponte*. (C.C.P. §128.7(c)(2).) The moving party must first serve the motion for sanctions on the offending party at least 21 days before filing it; this safe harbor provision allows the opposing party to withdraw or appropriately amend the "challenged paper, claim, defense, contention or denial." (*Barnes v. Department of Correction* (1999) 74 Cal.App.4th 126, 130.) At the end of the 21-day waiting period, if the pleading is not withdrawn, the moving party may file the motion. (C.C.P. §128.7(c)(1); *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 698-99.)

Here, Plaintiffs present evidence that they served this motion on Defendant more than 21 days before filing the motion. (See, Decl. of David J. Hallstrom at ¶ 8, Ex. A.) Defendant argues that this notice was insufficient to comply with the safe harbor requirement because Plaintiffs did not notify Defendant of the amount of sanctions being sought at that time. (Opposition, p. 5:12-27.) They cite no authority for this proposition. C.C.P. § 128.7(c)(1) states only that "[n]otice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected." Plaintiffs presented evidence that they complied with C.C.P. § 128.7(c)(1), so the motion is procedurally proper.

On the Merits

Pursuant to C.C.P. § 128.7, an attorney or unrepresented party who presents a pleading, motion or similar paper to the court makes an implied certification as to its legal and factual merit, and a violation of this implied certification subjects the attorney and/or party to sanctions. (C.C.P. § 128.7; *Murphy v. Yale Materials Handling Corp.* (1997) 54 Cal.App.4th 619,623.) Under C.C.P. § 128.7, "there are basically three types of submitted papers that warrant sanctions: factually frivolous (not well grounded in

fact); legally frivolous (not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law); and papers interposed for an improper purpose.” (*Guillemín v. Stein* (2002) 104 Cal.App.4th 156, 167.) Whether the paper or pleading is frivolous or improper is tested objectively. (*Bockrath v. Aldrich Chem. Co., Inc.* (1999) 21 Cal.App.4th 71, 82.) “A claim is objectively unreasonable if any reasonable attorney would agree that it is totally and completely without merit.” (*Peake v. Underwood* (2014) 227 Cal.App.4th 428, 440 [internal quotation marks and citation omitted].) It is not necessary to demonstrate that the party acted in bad faith. (*Id.* at 449.) Additionally, a party “presents” a pleading or paper, under C.C.P. § 128.7, if it *signs, files, submits or later advocates* the positions set forth in the original document. (C.C.P. § 128.7(b).) Thus, a continuing obligation is imposed. That is, a litigant’s obligations regarding the contents of papers are not measured solely as of the time the papers are filed with the court. The same certification applies when the litigant “advocates” claims or defenses previously pleaded. (*Id.*) Therefore, sanctions may be awarded where an attorney/litigant argues positions contained in earlier-filed papers after learning such positions are without evidentiary support or legal merit.

However, “the sanctions statute must not be construed so as to conflict with the primary duty of an attorney to represent his or her client zealously. Forceful representation often requires that an attorney attempt to read a case or an agreement in an innovative though sensible way. Our law is constantly evolving, and effective representation sometimes compels attorneys to take the lead in that evolution.” (*Peake, supra*, 227 Cal.App.4th at 441 [internal quotations omitted].) Furthermore, these statutes “should be utilized only in the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose. ... Because our adversary system requires that attorneys and litigants be provided substantial breathing room to develop and assert factual and legal arguments, [section 128.7] sanctions should not be routinely or easily awarded even for a claim that is arguably frivolous ..., and instead should be made with restraint. ... Indeed, even if a plaintiff could not successfully defend against either demurrer or summary judgment, that alone is insufficient to support the sanction of dismissal.” (*Kumar v. Ramsey* (2021) 71 Cal.App.5th 1110, 1121 [internal citations and quotations omitted]; see also, *Peake, supra*, 227 Cal.App.4th at 448 [“Our conclusion that the court properly found Peake’s statutory and common law claims were without merit, and there was no arguable factual or legal basis for asserting those claims, does not necessarily answer the question whether sanctions were appropriate under the circumstances of the case.”].)

In the present case, at issue is Defendant’s motion to set aside the default judgment entered against him, wherein he argued that: the judgment was void because the court lacked statutory and subject matter jurisdiction over the claims; the doctrine of exclusive concurrent jurisdiction applied because the Probate Court asserted jurisdiction first; and the Court should reconsider its findings on the default judgment. The Court denied Defendant’s motion, finding the judgment was not void because the civil court had subject matter jurisdiction over Plaintiffs’ claim and the doctrine of exclusive concurrent jurisdiction did not apply. (5/4/26 Order.) The Court also found reconsideration of the judgment was improper. (*Ibid.*)

While Defendant's claims ultimately failed, the arguments raised by his counsel appear to be based on her "innovative" reading of the law and zealous representation. (See, *Peake, supra*, 227 Cal.App.4th at 441.) While the Court did rule in Plaintiffs' favor, this is insufficient alone to support an award of sanctions pursuant to C.C.P. § 128.7. (See, *Kumar, supra*, 71 Cal.App.5th at 1121; *Peake, supra*, 227 Cal.App.4th at 448.)

Additionally, while Plaintiffs contend Defendant's actions were intended to require them to spend significant amounts of money, there is insufficient evidence that the motion was filed for an improper purpose. As sanctions awards are to be granted with restraint, and sanctions should not be routinely awarded even for a claim that is arguably frivolous, this motion is denied. (*Ibid.*)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501448	SANCHEZ vs GENERAL MOTORS LLC	MOTION TO COMPEL

Tentative Ruling:

Plaintiff's Motion to Compel as to RFP Nos. 3 and 28 is granted (the response to RFP No. 28 is limited to 2022 to present.)

The parties are ordered to meet and confer regarding the definition of Transmission Defect to establish a definition that is easily searchable.

The request for sanctions is denied.

RFP No. 3 requests all warranties issues by You or GM regarding the Subject Vehicle. Defendant responded that the request was nonsensical because it was intended for a different entity. "You" is defined to include Defendant as well as affiliated entities. (See Decl. of McCabe, Ex. A.) The warranties are clearly directly relevant to the breach of warranty claims. Apparently, Defendant is confused because the RFP appears to seek warranties issued by GM as well as other entities. However, the request expressly seeks warranties issued by GM. As such, Defendant must respond. If it does not have custody or control of documents held by the affiliated entities described in the definition, it should indicate the reason for the inability to comply as well as the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item. (CCP § 2031.230.) Grant the Motion to Compel.

RFP Nos. 23, 40, 41, 42 and 46 seek complaints to GM and other entities regarding the Transmission defect in Sierra 1500 vehicles. Transmission Defect is defined as "such defect which result in symptoms, including but not limited to: a vehicle that "wants to jolt forward" when coming to a stop; internal binding of a 1-2-3-4-5 Reverse piston; sticking pistons during lowering; overheating and warping of clutch steels and friction plates; discoloration of internal harnesses; "consequential damage" to internal pistons and springs; and any other similar concerns identified by Plaintiff or in the repair history for the Subject Vehicle." (Decl. of McCaabe, Ex. A.)